

Six Hundred Twenty-Four Thousand Nine Hundred Ninety Nine Dollars and Ninety-Nine Cents (\$624,999.99) and Class Counsel's costs not to exceed Thirty-Five Thousand Dollars and Zero Cents (\$35,000.00), for the time spent litigating this matter as well as expenses incurred in the prosecution of the action thus far. The one-third of the total settlement amount as fees is based on the reliance of the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$9,000 the class representative will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Pursuant to Code of Civil Procedure section 382.4, where a settlement proceed can be paid to a non-party to the action, "an attorney for a party to the action shall, in connection with the hearing for preliminary approval pursuant to subdivision (c) of Rule 3.769 of the California Rules of Court, notify the court if the attorney has a connection to or a relationship with a nonparty recipient of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or things of value and interests of the class."

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The Court **grants** this Motion for Preliminary Approval of the Class Action Settlement, and will execute the proposed order lodged on December 22, 2025. The Clerk of the Court is requested to schedule hearing date for the motion for final approval.

Other dates in the proposed order shall be adopted. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement. No appearance is required at the hearing on May 13, 2026.

8. 9:00 AM CASE NUMBER: C24-03039
CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL
*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Golden Rain Foundation Of Walnut Creek Db a Rossmoor Walnut Creek's (hereafter "Defendant" or "GRF") Motion to Strike Punitive Damages. The Motion to Strike relates to Plaintiff's First Amended Complaint (FAC) for three housing discrimination related causes of action. Defendant requests to strike paragraphs 1, 42, 56, and paragraph 5 in the prayer for damages.

For the following reasons, the **Motion to Strike is granted in part and denied in part. The Motion to Strike is granted as paragraph 56 and denied as paragraphs 1, 42, and prayer for damages ¶ 5.**

Meet and Confer Requirement

Defendant First Walnut Creek Mutual satisfied their meet and confer requirement by detailing their efforts with Plaintiff in the Declaration of Mark J. Mulkerin. (Decl. of Mulkerin ¶ 2.) Defendant has satisfied its meet and confer requirement. (Code Civ. Proc. § 435.5)

Request for Judicial Notice

The Court declines to rule on Defendant's requests for judicial notice. "Only relevant material is a proper subject of judicial notice, even where the Evidence Code provides in mandatory terms that matters be judicially noticed." (*Hayward Area Planning Assn. v. City of Hayward* (2005) 128 Cal.App.4th 176, 182 citing *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

Procedural History

On September 12, 2025, Plaintiff filed the initial action against GRF and an amended complaint on November 14, 2025 ("FAC"). GRF answered on January 14, 2026, and then filed its general motion to strike punitive damages on the following day, January 15, 2026, which is scheduled to be heard on May 13, 2026. On January 26, 2026, this Court, sua sponte, consolidated the GRF action with a related case, Rose vs. First Walnut Creek Mutual (C24- 03039). On March 13, 2026, Plaintiff filed a motion for reconsideration, to be heard on August 26, 2026, respectfully requesting this Court reconsider its sua sponte consolidation order.

Statement of Facts

Plaintiff inherited real property from her mother when she passed away. This real property has attached to it a non-severable, mandatory membership in the Golden Rain Foundation of Walnut Creek. (FAC ¶ 21.) As a condition of membership, in addition to monthly assessments, GRF charges a one-time Membership Transfer Fee (MTF). (FAC ¶ 20, GRF Ans. ¶ 20.)

In December 2022, Plaintiff was denied this MTF exemption, even though the MTF was already paid by her mother, because she inherited her membership from a parent and not from a spouse, which Plaintiff argues is discriminatory. (FAC ¶¶ 24, 25, 47.) Plaintiff expresses her position that this lawsuit was brought to challenge the discriminatory circumstances in which GRF does not charge a MTF. Specifically, GRF's Inheritance Exemption, Corporate Policy 102.1.4 section C3 ("Policy"), provides an

exemption to the MTF but it is “limited to circumstances in which title is transferred to a spouse or registered domestic partner”. (FAC ¶ 25, GRF Ans. ¶ 25.)

Legal Standard

A court’s determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on “extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Rule of Court Rule 3.1322(a)

“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (CRC, Rule 3.1322 (a).)

Since Defendant did not quote specific portions of any paragraphs but listed four specific paragraphs, the Court will construe Defendant’s request as to strike all four listed paragraphs in their entirety.

Statutory Treble Damages Under Civil Code 52

The treble damages plead in FAC ¶ 42 are independent of the damages framework provided in Civil Code section 3294.

Paragraph 42 of the FAC refers to the statutory treble damages provided by Civil Code section 52. Unruh Act Treble Damages are a part of a mandatory statutory remedy scheme which provides a minimum damage award of \$4,000.00 and a maximum award of treble damages proven for offense of Civil Code sections 51, 51.5, or 51.6. (Civ. Code § 52(a).) Plaintiff alleges a Civil Code section 51 violation. (FAC ¶ 34-37.)

As the Ninth Circuit has explained, "proof of actual damages is not a prerequisite to recovery of statutory minimum damages." (*Botosan v. Paul McNally Realty* (9th Cir. 2000) 216 F.3d 827, 835; see also *Koire v. Metro Car Wash*, 40 Cal. 3d 24, 33 [Unruh Act "provides for [statutory] damages aside from any actual damages incurred by the plaintiff."].) To maintain an action for statutory minimum damages, plaintiff must establish that they were denied full and equal access on a particular occasion. (Id. citing *Donald v. Cafe Royale, Inc.* (1990) 218 Cal.App.3d 168, 183.)

Here, Plaintiff only needs to show she was denied full and equal access from services. At the pleading stage Plaintiff pled that Defendant maintained a policy where she was denied full and equal access to an inheritance exemption for spouses when Plaintiff applied for it after her mother passed away. (FAC ¶¶ 19, 24-28.)

The Motion to strike FAC ¶ 42 is denied.

Punitive Damages Pursuant to Civil Code section 3294

The standards for alleging the right to punitive damages are set forth in Civil Code section 3294 and the case law construing it, which require more than mere conclusory allegations of willful, malicious, or oppressive conduct. Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" is defined as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1) [emphasis added].)

Civil Code section 3294 was amended in 1987 to add the requirement that conduct be "despicable" to support an award of punitive damages based on malice or oppression, unless the complaint alleges an intent to injure the plaintiff. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211; Stats.1987, c. 1498, § 5, p. 5780.) The California Supreme Court explained:

[T]he statute's reference to "despicable" conduct seems to represent a new substantive limitation on punitive damage awards. Used in its ordinary sense, the adjective "despicable" is a powerful term that refers to circumstances that are "base," "vile," or "contemptible." (4 Oxford English Dict. (2d ed. 1989) p. 529.) As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found.

(*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) (See also *Lackner v. North*, *supra*, 135 Cal.App.4th at 1209 ["The adjective 'despicable' connotes conduct that is ' . . . so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citations, internal quotations omitted.]".])

"Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294.] . . . [Citations omitted; emphasis added.]" (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163-164.) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for punitive damages: "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [emphasis added, citing *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29].) Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to

survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 ["Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation omitted; emphasis added.] The terms themselves are conclusory, however." (Emphasis added.)) (See also *Lackner v. North, supra*, 135 Cal. App. 4th at 1210 ["Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate" (Emphasis added.)])

The FAC mentions punitive damages twice. Once in the prayer for relief section at the end of the FAC and once in paragraph 56 as an allegation for Plaintiff's second cause of action for Violation of FEHA. (FAC ¶ 56 and prayer for relief ¶ 5.)

The Court will allow the exemplary, treble and punitive damages allegation in FAC ¶ 1 and prayer for relief ¶ 5 since it encompasses the mandatory statutory damages provided by Civil Code section 52 subsection a as explained above.

FAC ¶ 56 is a threadbare conclusory allegation that is simply parroting the language of the statute. This is simply not enough for this punitive damages claim to survive a motion to strike. (See FAC ¶¶ 44-56.)

Conclusion

For the reasons analyzed above, the **Motion to Strike is granted in part and denied in part. The Motion to Strike is granted as paragraph 56 and denied as paragraphs 1, 42, and prayer for damages ¶ 5.**

9. 9:00 AM CASE NUMBER: C24-03057

CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF WALNUT CREEK

TENTATIVE RULING:

Summary

On January 16, 2026, Defendant City of Walnut Creek's ("City") filed a Demurrer to Plaintiff Sioux Ewy's ("Plaintiff") complaint. In reviewing the moving papers and the Declaration of Counsel Diana S. Godwin, the Court finds that the City complied with the statutory requirement to meet and confer pursuant to Cal. Code of Civ. Proc § 430.41. The Court further finds that no timely opposition was filed and served by Plaintiff.

As such, the Demurrer is **sustained without leave to amend**. The Court will execute the proposed order lodged by the City dated January 16, 2026 and will request that the Clerk of the Court attach this tentative ruling to the proposed order. No appearance is required at the hearing on May 13, 2026.